

Opinion of the Court

concurring in judgment in part and dissenting in part), and, though it arises in a new context, this Court has not “‘cast doubt’” on extending *Bivens* within the “‘common and recurrent sphere of law enforcement’” in which it arose, 998 F. 3d, at 389 (quoting *Ziglar*, 582 U. S., at 134). While *Bivens* and this case do involve similar allegations of excessive force and thus arguably present “almost parallel circumstances” or a similar “mechanism of injury,” *Ziglar*, 582 U. S., at 139, these superficial similarities are not enough to support the judicial creation of a cause of action. The special-factors inquiry—which *Bivens* never meaningfully undertook, see *Stanley*, 483 U. S., at 678—shows here, no less than in *Hernández*, that the Judiciary is not undoubtedly better positioned than Congress to authorize a damages action in this national-security context. That this case does not involve a cross-border shooting, as in *Hernández*, but rather a more “conventional” excessive-force claim, as in *Bivens*, does not bear on the relevant point. Either way, the Judiciary is comparatively ill suited to decide whether a damages remedy against any Border Patrol agent is appropriate.

The Court of Appeals downplayed the national-security risk from imposing *Bivens* liability because Agent Egbert was not “literally ‘at the border,’” and Boule’s guest already had cleared customs in New York. 998 F. 3d, at 388; see also *post*, at 514–515, 520–521 (opinion of SOTOMAYOR, J.). The court also found that Boule had a weightier interest in *Bivens* relief than the parents of the deceased Mexican teenager in *Hernández*, because Boule “is a United States citizen, complaining of harm suffered on his own property in the United States.” 998 F. 3d, at 388; see also *post*, at 515, 520–521 (opinion of SOTOMAYOR, J.). Finding that “any costs imposed by allowing a *Bivens* claim to proceed are outweighed by compelling interests in favor of protecting United States citizens on their own property in the United States,” the court extended *Bivens* to Boule’s case. 998 F. 3d, at 389.